



International Cocoa Agreement Act 1973

1973 CHAPTER 46

An Act to enable effect to be given in the United Kingdom to the International Cocoa Agreement [25th July 1973]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) This section applies to goods of the following descriptions, that is to say, cocoa beans and such products as are for the time being defined as cocoa products for the purposes of the International Cocoa Agreement.

Regulation of importation of cocoa and cocoa products.

(2) No goods to which this section applies shall be imported into the United Kingdom except under the authority of a licence granted under this section by the Secretary of State and in accordance with any conditions attached thereto.

(3) The conditions which may be attached to a licence under subsection (2) above may include a condition requiring the production or surrender to an officer of Customs and Excise, in relation to any goods which are imported under the licence, of such evidence as may be specified in the licence that any contribution chargeable under the International Cocoa Agreement in respect of those goods has been paid or secured.

(4) A licence granted under this section may be revoked or varied by the Secretary of State at any time.

(5) Any person who, for the purpose of obtaining a licence under this section, makes a statement or furnishes any document or information which to his knowledge is false in a material particular or recklessly makes a statement which is false in a material particular, shall be liable on summary conviction to a fine not exceeding £400.

1939 c. 69.

(6) Nothing in any order made under section 1 of the Import, Export and Customs Powers (Defence) Act 1939 shall apply to the importation into the United Kingdom of any goods to which this section applies.

(7) In this section "the International Cocoa Agreement" means the International Cocoa Agreement 1972 which was signed on behalf of the United Kingdom at New York on 15th November 1972 and includes any amendment of that agreement (whether made before or after the passing of this Act) and any agreement made after the passing of this Act replacing that agreement.

Short title
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mencement.

2.—(1) This Act may be cited as the International Cocoa Agreement Act 1973.

(2) This Act shall come into force on such day as the Secretary of State may appoint by order made by statutory instrument.